



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00101 / 2600 Missile Drive (84 Lumber Company Site) Zone Change
Date: May 9, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their May 2, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

- 2600 Missile Drive (84 Lumber Company Site) Annexation (UDC-22-00096)

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY LI LIGHT INDUSTRIAL TO LI LIGHT INDUSTRIAL FOR LAND LOCATED NORTH OF MISSILE DRIVE, EAST OF I-25.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on May 2, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of Lot 1, Block 1, 84 Lumber Company Site, Laramie County, Wyoming, more particularly described as follows:

beginning at the Northwest corner of the Original City of Cheyenne, thence S26°18'30"E, along the West line of the Original City of Cheyenne, a distance of 569.48 feet to the North line of that parcel recorded In Book 2474, Page 1144, thence S62°26'54"W, along said North Line, a distance of 117.76 feet to the West line of Lot 1; thence N23°40'06"W, along the West line, a distance of 372.32 to the Westerly corner of Lot 1; thence N0°22'38"E, a distance of 223.97 feet to the point of beginning. Containing 1.16 acres more or less.

is hereby changed to LI Light Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval, publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

MAY 2, 2022

STAFF REPORT

FILE: UDC-22-00101: 84 Lumber Company Site – Zoning Map Amendment (assigning a City zone to annexed land)

REQUEST: A request to rezone approximately 1.2 acres of land from County LI to City LI

LOCATION: North of Missile Drive east of I-25

APPLICANT: Capital Development, LLC (Dan Montgomery)

AGENT: Shane Hansen

OWNER: Capital Development, LLC

ZONING: County LI

FUTURE LAND USE: Industrial

PURPOSE: To put the entire ownership parcel in one jurisdiction

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the Lot 1, Block 1, 84 Lumber Company Site to LI as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County LI to City LI for 1.2 acres of land, concurrent with an annexation. The assignment of a City zone is necessary to establish the regulation of annexed property.

The land is already developed with industrial use. The impetus behind the annexation and zone change is to clarify the parcel's jurisdiction (it is currently split between two jurisdictions).

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Industrial	County LI Light Industrial	Industrial
North	Industrial, Mixed-use Employment	LI Light Industrial	Industrial, Rail Yard
South	Industrial, Mixed-use Commercial	County LI, LI	Mobile Home Park, Vacant
East	Industrial	LI	Rail Yard
West	Public-Federal	County Exempt, SS Support Services	WYDOT, Military Base

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is very close to the Urban Service Boundary, in an area with existing infrastructure. Policies in PlanCheyenne encourage industrial development near regional transportation routes and on the edges of the community (where they can be buffered from the residential and customer-based commercial uses).

The Future Land Use Designation for this property is Industrial. Surrounding areas are largely designated Industrial. According to comprehensive plan, the optimal City zones for the subject property's future land use designation are LI and HI.

Areas designated Industrial are anticipated to develop with employment uses which have potential negative impacts to surrounding properties. These areas should be located near major transportation routes, and should be buffered from residential areas.

The policies and future land use map of PlanCheyenne are supportive of this proposed zone assignment.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

All surrounding property is zoned LI (either in the City or without). Both the City and County LI zones allow a mix of industrial, commercial, service, or office uses.

This proposed zone change would allow this parcel to continue to match adjacent property. The proposed zoning is also compatible with the future land use designations on nearby property.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The property currently has a County zone, but in order to develop within the City, a City zone is required. The proposed LI zone is analogous to the current County LI zone.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Block sizes are not applicable in areas designated industrial. Regional transportation routes severely limit the ability of this area to add to the street network.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The LI Light Industrial zone is intended to develop with limited manufacturing or intensive employment uses, located near major transportation corridors and buffered from residential

uses. It is applicable in areas designated Industrial or Mixed-use Employment Campus by the future land use map.

The subject property is located near an interstate and a railroad and is more than 500' from the nearest residential zone (across a rail yard). The property is designated Industrial by the future land use map.

Building design standards do not apply to the LI zone, and other design standards apply across zoning districts.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The reason for this rezoning is to assign a City zone in concert with an annexation. The annexation is proposed to put an entire facility into one jurisdiction. There is no substantive changes to the use of the property currently proposed. Should the property be redeveloped, there are a number of industrial and commercial uses which would be eligible to be established at this location. Having the property under one jurisdiction would provide regulatory clarity for future development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The LI zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County LI to City LI.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

Planning and Development: Zoning Map Amendment Application

Submission date: **18 March 2022, 1:39PM**
Receipt number: **28**
Related form version: **10**

General Information

Applicant Name:	CAPITAL DEVELOPMENT LLC (DAN MONTGOMERY)
Applicant Address:	3823 Cheyenne St
Applicant City:	CHEYENNE
Applicant State:	WY
Applicant Zip Code:	82001
Applicant Phone:	307-631-0498
Applicant Email	westerndrywall@gmail.com
Representative Name:	SHANE HANSEN - AGENT - STEIL
Representative Address:	1102 W. 19TH ST.
Representative City:	CHEYENNE
Representative State:	WY
Representative Zip Code:	82001
Representative Phone:	307-634-7273
Representative Email:	shansen@steilsurvey.com
Owner Name:	DAN MONTGOMERY
Owner Address:	3823 Cheyenne St

Owner City:	CHEYENNE
Owner State:	WY
Owner Zip Code:	82001
Owner Phone:	307-631-0498
Owner Email:	westerndrywall@gmail.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	LOA.pdf
Project Location (Street Address or General Location):	84 LUMBER COMPANY SITE
Assessor's Parcel ID number(s)	14673640800900
Total Project Area	1.18 ACRES
Existing Zoning	LI - Light Industrial
Requested Zoning	LI - Light Industrial

Application-Specific Questions

Written Statement	ZONE CHANGE FROM COUNTY LI TO CITY LI
Zoning Map	22130 ANNEX PAPER (1).pdf
Notification Letter	neighbor-notification-letter-template (2).pdf
Supporting Documents / Information	Laramie County, Wyoming, MapServer.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

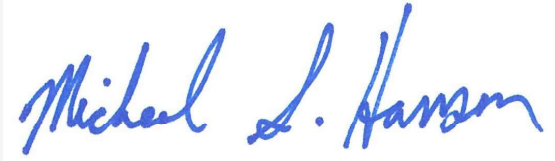
Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: SHANE HANSEN

A handwritten signature in blue ink that reads "Michael L. Hansen". The signature is written in a cursive style with a large initial 'M' and a distinct 'L'.

Uploaded signature image: [HANSEN SIGNATURE.jpg](#)

Please enter an email address for an email receipt.

shansen@steilsurvey.com

NW COR. LOT 4
SEC. 36

SOUTH LINE GOVERNMENT LOT 3
NORTH LINE GOVERNMENT LOT 4 SECTION 36

BNRR RIGHT OF WAY

LEGEND

- FOUND $\frac{3}{8}$ " X 24" LONG REBAR WITH $\frac{1}{2}$ " ALUMINUM CAP
STAMPED "SSS PLS 2500"
- FOUND STONE NW CORNER ORIGINAL CITY OF CHEYENNE
- ⊙ FOUND $\frac{3}{8}$ " REBAR
- (P) DENOTES PLAT DATA
- ▨ AREA TO BE ANNEXED
- ▤ CITY LIMITS

POB
NW CORNER OF
ORIGINAL CITY

N=71792.39'
E=590585.35'

WEST LINE SECTION 36
ORIGINAL U.S. RAILROAD RELOCATION BOUNDARY

INTERSTATE 25 SERVICE ROAD

LOT 1
BLOCK 1

84 LUMBER
COMPANY SITE

LEWIS AND LEWIS, LLC
B2474, P1144 PORTION LOT 1

COBETTO SUBDIVISION
LOT 1, BLOCK ONE

CITY CONTROL MONUMENT
"NOB HILL"
N. 63965.11'
E. 588218.48'

CITY CONTROL MONUMENT
"BRIDGE"
N. 66742.14'
E. 500448.91'

N=71451.39'
E=590734.81'

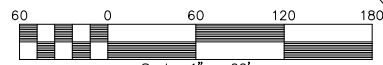
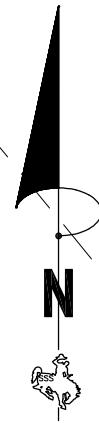
S1° 02' 42"W
4710.04'

S57° 01' 11"E
408.65'

BNRR RIGHT OF WAY

ANNEXATION DESCRIPTION

A parcel being a portion of Lot 1, Block 1, 84 Lumber Company Site, situate in the South Half of Section 36, T.14N., R.67W. of the 6th P.M., Laramie County, Wyoming, being more particularly described as follows: Beginning at the Northwest corner of the Original City of Cheyenne, thence S26°18'30"E, along the West line of the Original City of Cheyenne, a distance of 569.48 feet to the North line of that parcel recorded in Book 2474, Page 1144, thence S62°26'54"W, along said North Line, a distance of 117.76 feet to the West line of Lot 1; thence N23°40'06"W, along the West line, a distance of 372.32 feet to the Westerly corner of Lot 1; thence N0°22'38"E, a distance of 223.97 feet to the point of beginning. Containing 1.16 acres more or less.



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ANNEXATION MAP FOR A PORTION OF LOT 1, BLOCK ONE, 84 LUMBER COMPANY SITE

APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming,
this _____ day of _____, 2022.

ATTEST: _____
Mayor City Clerk

ANNEXATION AREA

TOTAL AREA: 1.16 ACRES
ABUTTING ANNEXATION AND RATIO TO TOTAL
PERIMETER - 54%

REVISED: 3/14/2022
22130 ANNEX.DWG

LOT 1, BLOCK ONE
84 LUMBER COMPANY SITE,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED MARCH 2022

VICINITY MAP



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